No. 2026-1817

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UNITED STATES COURT OF APPEALS FOR THE FEDERAL CIRCUIT

United States Court of Appeals
For the Federal Circuit

GEM PRODUCTS, LLC,

Plaintiff-Appellant,

GEM PRODUCTS, LLC,

Plaintiff-Appellant,

v.

RUPP MARINE, INC.,

Defendant-Appellee.

RUPP MARINE, INC.,

Defendant-Appellee.

Appeal from the United States District Court for the Southern District of Florida, Case No. 2:25-cv-14047-DMM, Hon. Donald M. Middlebrooks

REPLY BRIEF FOR PLAINTIFF-APPELLANT GEM PRODUCTS, LLC

Appeal from
The United States District Court for the Southern District of Florida,
Case No. 2:25-cv-14047-DMM
Hon. Donald M. Middlebrooks

REPLY BRIEF FOR PLAINTIFF-APPELLANT GEM PRODUCTS, LLC

Joseph R. Lanser
Jaimin H. Shah
TAFT STETTINIUS & HOLLISTER LLP
111 East Wacker Dr., Suite 2600
Chicago, IL 60601
Telephone: (312) 527-4000
jlanser@taftlaw.com

Alex M. Mathews
TAFT STETTINIUS & HOLLISTER, LLP
One Indiana Square, Suite 3500
Indianapolis, IN 46204
Telephone: (317) 713-3500

Charles D. Pfister
TAFT STETTINIUS & HOLLISTER, LLP
40 N. Main St., Suite 1700
Dayton, OH 45423
Telephone: (937) 641-2071

Joseph R. Lanser
Principal Counsel
Jaimin H. Shah
TAFT STETTINIUS & HOLLISTER, LLP
111 East Wacker Dr., Suite 2600
Chicago, IL 60601
Telephone: (312) 527-4000
jlanser@taftlaw.com

Alex M. Mathews
TAFT STETTINIUS & HOLLISTER, LLP
One Indiana Square, Suite 3500
Indianapolis, IN 46204
Telephone: (317) 713-3500

Charles D. Pfister
Telephone: (937) 641-2071
TAFT STETTINIUS & HOLLISTER, LLP
40 N. Main St., Suite 1700
Dayton, OH 45423
Telephone: (937) 641-2071

Counsel for Plaintiff-Appellant GEM Products, LLC

Counsel for Plaintiff-Appellant GEM Products, LLC

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I. ARGUMENT

The district court's error was not that it simply used imprecise terminology about "movement." Instead, it indiscriminately granted summary judgment of noninfringement across materially different claims and product configurations by replacing the actual claim language with a categorical rule that none of Rupp's Pulley Clusters cause infringement if any component can move. Neither the claims nor the intrinsic record support that rule. Rupp's generic and hypothetical examples of alternative Pulley Cluster use likewise fail to establish substantial noninfringing use. And the record contains competing evidence of the configurations of the actual Pulley Clusters Rupp sells and end-users rig and use. Any of those disputes required denial of summary judgment.

A. The District Court's Claim Construction was Legally Wrong

Rupp does not dispute the claims of the '632 Patent are materially different to the claims of the other asserted '778, '226 and '566 Patents. The '632 Patent claims a system requiring "*a housing* secured by at least one fastener against displacement relative to the outrigger structure." Appx68 (emphasis added). The '778 Patent claims methods, and the '226 and '566 Patents respectively claim systems and apparatus, but none include the "housing secured by at least one fastener" limitation from the '632 Patent. Instead, the claims of the '778, '226 and '566 Patents require, in one form or another, "*cord passages* extend[ing] at *fixed angular orientations*

relative to the outrigger." Appx84; Appx101. Appx119 (emphasis added). The district court ignored these critical differences when finding wholesale noninfringement of all Asserted Patents. Appx4-5.

Rupp does not—and cannot—defend a limitation-by-limitation basis for summary judgment as to each Asserted Claim. The Order evaluated only claim 1 of the '632 Patent, extended a legally incorrect "movement" requirement—imported into the claims of the '632 Patent—to the other Patents that plainly do not include the housing-and-fastener language.

Rupp attempts to rely on Examiner commentary from the '778 Patent prosecution to assert the claims of the '632 Patent require "no movement." Rupp's Opposition, CAFC Dkt. 9 ("Red.Br.") at 46. First, these Examiner comments pertained to the "fixed angular orientation" limitation the '632 Patent plainly lacks. Appx65-68. But even assuming the commentary pertained to the '632 Patent, it still could not support disclaimer, since "it is the applicant, *not the examiner*, who must give up or disclaim" claim scope. *Arendi S.A.R.L. v. Google, LLC*, 882 F.3d 1132, 1135 (Fed. Cir. 2018) (emphasis added).

And the sole portion of the '632 Patent reexamination prosecution Rupp cited, "clear and unmistakable" disclaimer. Red.Br.46; Appx12. Rather, this passage addressed only how a "fixed angular orientation" of the cord passages could differentiate over Malin's (prior art) separate, individual pulleys "snapped" onto an eyebolt, which allows the pulleys to independently dangle freely, adopting whatever orientations the respective

differentiate over Malin's (prior art) separate, individual pulleys "snapped" onto an eyehook, which allows the pulleys to independently dangle freely, adopting whatever orientations the respective halyard lines' tension dictates. Appx1271-1273. There is nothing that addressed anything relating to a housing that must have "no movement" or be "directly connected" an outrigger. *Id.* Significantly, the patentee *dropped* this proposed "fixed angular orientation" of cord passages limitation in the '632 Patent, as is not present in the '632 Patent reexamined claims, and instead retained the limitation that the "cord-passages [are] transversely offset from one another." Appx65-68.

Rupp also argues the patentee's statement that "[s]uch 'snap' coupling [in Malin] negates any notion of *defining a plurality of cord passages*" which are "*transversely offset from one another*" must disallow all movement of the housing relative to the outrigger and requiring a "direct, fixed" connection. Red.Br.41, 46. But it is clear the patentee was describing only how the "*cord passages*" align "'*transversely offset*' from one another," versus Malin's individual pulleys that separately "snap[]" onto the eyehook like "one link of a metal chain may hook to another link of the chain," and thus disjointedly and freely hang until halyard lines are tensioned. Appx1272. This is not disclaimer, especially involving "movement" of the housing, or that the housing must be "directly connected" to the outrigger. At best, the statement distinguishes a configuration of independently attaching separate, distinct pulleys lacking a collective transversely offset cord passage arrangement, which allows the pulleys to independently freely dangle until tensioned by respective halyard lines. It does not clearly and unmistakably disclaim configurations where a housing may move under load while the claimed cord passages remain transversely offset, as Rupp contends. At most, these prosecution statements are

distinct pulleys lacking a collective transverse offset cord passage arrangement, which allows the pulleys to independently freely dangle until tensioned by respective halyard lines. It does not clearly and unmistakably disclaim configurations where a housing may move under load while the claimed cord passages remain transversely offset, as Rupp contends. At most, these prosecution statements are ambiguous and "amenable to multiple reasonable interpretations" and thus cannot establish disclaimer. *Genuine Enabling Tech. LLC v. Nintendo Co.*, 29 F.4th 1365, 1374 (Fed. Cir. 2022).

Even assuming, *arguendo*, the "fixed angular orientation" limitation discussed during the '632 Patent reexamination pertained to movement, it still does not mean every part of Rupp's Pulley Clusters must be immovable under all Asserted Claims. And the district court never considered whether Rupp's Pulley Clusters' "cord passages" maintain the "fixed angular orientations" relative to the outrigger, as required in the '778, '226 and '566 Patents. *See* Appx2-14; Appx84-85; Appx101-102; Appx119-121.

Rupp also incorrectly treats GEM's technical expert's deposition testimony as dispositive proof all claims require a housing "directly connected" to the outrigger with "a fastener," including the claims of the '778 and '226 Patents that have no "housing" or "fastener" limitations whatsoever.[1] Red.Br.47; Appx84-85; Appx101-102. But this testimony cited by Rupp related to GEM's expert's rebuttal invalidity report regarding how the claimed "housing" in the '632 Patent could be distinguishable over prior art. Appx5892-5894. Even if relevant, this testimony cannot rewrite the plain language of the claims to require a "direct connection" between the housing and outrigger when no such requirement exists, nor can it rewrite the claims of the '778 or '226 Patents to require "a housing" be "directly connected" with "a fastener" where no claim mentions

[1] The '566 Patent claims include "a housing portion" and "a releasable fastening portion," but still do not have any "direct connection" requirement.

"housing" or "fastener" limitations whatsoever.[1] Red.Br.47; Appx84-85; Appx101-102. But this testimony cited by Rupp related to GEM's expert's rebuttal invalidity report regarding how the claimed "housing" in the '632 Patent could be distinguishable over prior art. Appx5892-5894. Even if relevant, this testimony cannot rewrite the plain language of the claims to require a "direct connection" between the housing and outrigger when no such requirement exists, nor can it rewrite the claims of the '778 or '226 Patents to require a "housing" be "directly connected" with "a fastener" where no claim mentions "a housing" or "a fastener."[2] *Phillips v. AWH Corp.*, 415 F.3d 1303, 1318 (Fed. Cir. 2005) ("[A] court should discount any expert testimony that is clearly at odds with the claim construction mandated by the claims themselves.…") (quotations omitted); Appx84-85; Appx101-102.

Even further assuming, *arguendo*, the '632 Patent claims require a "direct connection" as Rupp contends, Rupp does not dispute its Pulley Clusters *without Stems* "directly connect" with a fastener. And similarly, for Rupp's Pulley Clusters *with Stems* (whether loose or tight), the district court never explained how they would still not satisfy this "direct connection" requirement. There is nothing in the intrinsic record that would preclude a "stem" connected to the "housing" from

[1] The '566 Patent claims include "a housing portion" and "a releasable fastening portion," but still do not have any "direct connection" requirement.

[2] *See fn. 1.*

II. CONCLUSION

As discussed above and as set forth in GEM's Opening Brief (CAFC Dkt. 8), the district court committed several errors, any of which requires vacatur and remand, if not reversal. The district court's judgment rests on an erroneous construction, a claim-unspecific and configuration-specific analysis, and resolving disputed evidence against GEM. GEM was not required to conclusively prove infringement to defeat summary judgment. Once GEM identified evidence supporting competing inferences about Rupp's Pulley Cluster configurations, their operational characteristics, and actual end-user rigging and use, Rupp's burden could not be met through a single altered Pulley Cluster *with Loose Stems* demonstrative, generalized descriptions of generic pulleys, or attorney argument about unproven modifications.

Both the district court's claim-scope determination based on claim text and prosecution history, and the grant of summary judgment are reviewed *de novo*, with evidence viewed and inferences drawn in GEM's favor. Under either analysis, the judgment cannot stand. Therefore, the Court should vacate the Final Judgment and grant of summary judgment of noninfringement, and remand for further proceedings consistent with proper constructions and Rule 56 standards. Because the identified disputes are factual and material, those proceedings should include trial.

II. CONCLUSION

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Dated: September 14, 2026

Respectfully submitted,

/s/ Joseph R. Lanser
Joseph R. Lanser
Principal Counsel
Jaimin H. Shah
TAFT STETTINIUS & HOLLISTER, LLP
111 E. Wacker Dr.
Suite 2600
Chicago, IL 60601
Tel. (312) 527-4000
Fax (312) 527-4011
Email: jlanser@taftlaw.com

Charles D. Pfister
TAFT STETTINIUS & HOLLISTER, LLP
40 N. Main St.
Suite 1700
Dayton, OH 45423
Tel. (937) 641-2071
Fax (937) 228-2816
Email: cpfister@taftlaw.com

Alex M. Matthews
TAFT STETTINIUS & HOLLISTER, LLP
One Indiana Square
Suite 3500
Indianapolis, IN 46204
Tel. (317) 713-3500
Fax (317) 713-3699
Email: amatthews@taftlaw.com

Counsel for Plaintiff- Appellant GEM Products, LLC

Counsel for Plaintiff-Appellant GEM Products, LLC

CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMITATIONS

Case Number: 2026-1817

Short Case Caption: GEM Products, LLC v. Rupp Marine, Inc.

UNITED STATES COURT OF APPEALS
FOR THE FEDERAL CIRCUIT

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Signature: /s/ Joseph Lanser

Name: Joseph Lanser

CERTIFICATE OF SERVICE

I hereby certify that on September 14, 2026, I electronically filed the foregoing *Reply Brief For Plaintiff-Appellant Gem Products, LLC*, with the Court's CM/ECF filing system, which constitutes service, pursuant to Fed. R. App. P. 25(c) and Fed. Cir. R. 25(a).

Date: September 14, 2026

/s/ Joseph R. Lanser

Principal Counsel

Joseph R. Lanser

TAFT STETTINIUS & HOLLISTER, LLP

111 E. Wacker Dr., Suite 2600

Chicago, IL 60601

Tel. (312) 527-4000

Fax (312) 527-4011

Email: jlanser@taftlaw.com

I hereby certify that on September 14, 2026, I electronically filed the foregoing Reply Brief for Plaintiff-Appellant GEM Products, LLC with the Court's CM/ECF filing system, which constitutes service, pursuant to Fed. R. App. P. 25(c) and Fed. Cir. R. 25(a).

Date: September 14, 2026

/s/ Joseph R. Lanser

Joseph R. Lanser

TAFT STETTINIUS & HOLLISTER, LLP

111 E. Wacker Dr.

Suite 2600

Chicago, IL 60601

Tel. (312) 527-4000

Fax (312) 527-4011

Email: jlanser@taftlaw.com